

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502110	BANKS VS RIVERSIDE COMMUNITY HOSPITAL	DEMURRER

Tentative Ruling:

Defendant Kindred has agreed to withdraw its demurrer to the 7th, 9th, and 10th causes of action. The demurrer now is to the 1st cause of action for Medical Malpractice, the 3rd cause of action for Professional Negligence, the 4th cause of action for Negligence and the 5th cause of action for Negligent Hiring, Retention, & Supervision.

The elements of a cause of action for medical malpractice and professional negligence are the same. Kindred maintains that the facts alleged are not sufficient to state a cause of action because the allegations are conclusions rather than ultimate facts, however, the law allows less particularity of pleadings where the defendant possesses superior knowledge of the facts. Here, the First Amended Complaint sufficiently alleges ultimate facts for these causes of action to survive demurrer.

OVERRULE the demurrer as to causes of action 1 and 3.

Plaintiff has also alleged sufficient facts to state a claim for negligent hiring, retention and supervision.

OVERRULE the demurrer to the 5th cause of action.

As to the 4th cause of action for Negligence, Defendant Kindred argues that this claim is duplicative of the cause of action for Professional Negligence. The distinction between ordinary negligence and professional negligence is an important one, as they are governed by different standards of care and damage limitations. (See Civ. Code § 3333.2.) Accordingly, Plaintiff needs to allege the manner in which her claim for ordinary negligence does not sound in professional negligence.

SUSTAIN the demurrer to the 4th cause of action, with 30 days leave to amend.